

		The cost-splitting and related terms contained in paragraph 10 are collateral to the purpose of the contract. The Court hereby severs the following language in paragraph 10: “[A]ny fees to arbitrate - including but not limited to the administration fee and arbitrator’s hourly rate - shall be split by Employer and Employee” “Employee represents and warrants that she is not financially challenged, not in poverty as set forth in Code Civ. Proc., § 1284.2, and is financially capable to afford her own fees and expenses arising from arbitration as set forth in this paragraph, and if she becomes financially incapable to afford the fees and costs arising from arbitration as set forth in this paragraph during her course of employment, she will inform the Employer so that the parties would be able to renegotiate the terms of this Arbitration Agreement and/or this paragraph.” “Notwithstanding the foregoing, in the event that at the outset of arbitration proceeding, the arbitrator decides that one party must pay all the arbitration fees and/or that the fee split is not fair, should be disregarded, and/or is unconscionable, then each party has the option to immediately terminate arbitration and proceed with seeking remedies in the state court without any penalties pursuant to California Code of Civil Procedure Sections 1281.97 et. seq., including California Code of Civil Procedure Section 1281.98 and/or any applicable then current rules or regulations, as if the arbitration proceedings never existed.” The Court otherwise finds the parties’ arbitration agreement enforceable. The motion is therefore GRANTED, subject to severance of unconscionable provisions, and the proceedings STAYED pending arbitration. <i>Counsel for Defendant shall provide notice of this ruling.</i>
9.	Clinician Home Health Services Inc. v. Tamayo 24-1372698	The Motion to be Relieved as Counsel, filed on 5/20/26 by Attorney William J. Mall III of the Law Office of William J. Mall, III, as to the representation of Defendant MacGroup and Associates, LLC, is CONDITIONALLY GRANTED. The Motion is primarily in order and unopposed. However, the proposed order needs revisions [check box 5(a); fill in re IDC for Box 7; update trial date and time for Box 9]. The Motion is therefore CONDITIONALLY GRANTED, subject to submission of a revised proposed order. Relief will be effective upon filing of a proof of service of the signed order upon the client. <i>Moving counsel is to give notice of this ruling.</i>
10.	McQuade v. City of Anaheim	Before the Court is a motion to strike filed by defendants City of Anaheim (the City) and Rebecca Cherene (Cherene)(collectively,

	26-1550967	Defendants) regarding allegations in the Complaint filed by plaintiff Michael Jordan Jr. McQuade (Plaintiff). As set forth more fully below, the motion is GRANTED, in part, and DENIED, in part. The court may strike out any irrelevant, false or improper matter asserted in any pleading. (<i>Code of Civ. Proc. § 436, subd. (a).</i>) A motion to strike is the proper vehicle to attack a claim for punitive damages. (<i>Code of Civ. Proc. §§ 435-436; Truman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (<i>Civ. Code § 3294, subd. (a).</i>) <u>Allegations against City:</u> Plaintiff does not oppose the motion to strike punitive damages and references to "age" in paragraph 149 of the Complaint. The motion is therefore GRANTED as to these allegations against the City. <u>Allegations against Cherene:</u> In addition to any other available remedy, an individual can be held personally liable for harassing another employee in violation of California Fair Employment and Housing Act (FEHA). (<i>Gov. Code § 12940, subd. (j)(3); McClung v. Employment Develop. Dept.</i> (2004) 34 Cal.4th 467, 475.) Punitive damages may be awarded in civil actions for FEHA violations. (<i>Commodore Home Systems, Inc. v. Sup. (Brown)</i>(1982) 32 Cal.3d 211, 221; <i>Myers v. Trendwest Resorts, Inc.</i> (2007) 148 Cal.App.4th 1403, 1435-1436; see e.g. <i>Weeks v. Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1137, 1167 [affirming award of punitive damages against individual for sexual harassment].) Here, Plaintiff alleges Cherene was his direct supervisor and subjected him to harassment throughout his employment, including making derogatory remarks and criticizing his speech related to his disability. (Compl. ¶¶ 14-24.) The Court finds the allegations are sufficient to support malice and/or oppression. The motion is therefore DENIED as to punitive damages alleged against Cherene. <i>Defendants shall provide notice of this ruling.</i>
11.	Potter v. Gustafson 26-1554580	The recommended ruling will not be posted. Parties are to appear before the court to discuss the alleged failure of defendant Dicker & Dicker, LLP ("Firm") to serve the pending special motion to strike ("Motion") on plaintiff Jeffrey Potter ("Plaintiff"). Plaintiff will be given the opportunity to continue the hearing to August 20, 2026, to allow additional time to prepare an opposition. If Plaintiff wishes to proceed on the merits, the court will then provide its tentative ruling.
12.	Victory Live, Inc, v. Kai Sports and Entertainment Corp. 25-1512515	<i>(Dismissed)</i>
13.	Zamora v. General Motors, LLC	Before the Court is a motion for summary judgment, or summary adjudication in the alternative, filed by defendant General Motors, LLC